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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
19/385,242	11/11/2025	Nir BETSER	105462	9956

67801 7590 05/15/2026

PRTSI Inc.
232 NW 42nd Ter
Plantation, FL 33317

EXAMINER
LALONDE, ALEXANDRA ELIZABETH

ART UNIT	PAPER NUMBER
3783	

NOTIFICATION DATE	DELIVERY MODE
05/15/2026	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

usptomail@ipatent.co.il

Office Action Summary	Application No. 19/385,242	Applicant(s) BETSER, Nir	
	Examiner ALEXANDRA E LALONDE	Art Unit 3783	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 4/24/2026.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-29 is/are pending in the application.

5a) Of the above claim(s) 1-14 is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 15-29 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☑ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 11/11/2025 is/are: a)☐ accepted or b)☑ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date 12/23/2025.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Election/Restrictions

2. Applicant's election of group II in the reply filed on 4/24/2026 is acknowledged. Because applicant did not distinctly and specifically point out the supposed errors in the restriction requirement, the election has been treated as an election without traverse (MPEP § 818.01(a)).

3. Claims 1-14 are withdrawn from further consideration pursuant to 37 CFR 1.142(b) as being drawn to a nonelected invention, there being no allowable generic or linking claim. Election was made **without** traverse in the reply filed on 4/24/2026. The proper status indicator of "withdrawn" has not been given to claims 1-14. Claims 1-14 should be given the status indicator of withdrawn. See MPEP 714(II)(c) and 37 CFR 1.121.

Information Disclosure Statement

4. The information disclosure statement (IDS) submitted on 12/23/2025 is in compliance with the provisions of 37 CFR 1.97. Accordingly, the information disclosure statement is being considered by the examiner.

Drawings

5. The drawings are objected to as failing to comply with 37 CFR 1.84(p)(5) because they include the following reference character(s) not mentioned in the description: item 602, 974, 934, 1076, 1078, 1134, 1234, 1276, 1214, 1278, 1302, 1304, 1503, 1792, 2116, 2436, 2504, 1548, 2534, 2563, 2562, 2636, 2780, 2734 (examiner notes item 2734a is included, but not 2734 in figure 27A), 2718 (examiner notes item 2718a and 2718b are included, but not 2718 in figure 27B), 5966, 6004, 6071, 6166, 6356, 6412, 6418, 6416, 6410, 6518, 6516, 6616, 7337, 7464, 7490, 7500, 7502, and 7504. Corrected drawing sheets

in compliance with 37 CFR 1.121(d), or amendment to the specification to add the reference character(s) in the description in compliance with 37 CFR 1.121(b) are required in reply to the Office action to avoid abandonment of the application. Any amended replacement drawing sheet should include all of the figures appearing on the immediate prior version of the sheet, even if only one figure is being amended. Each drawing sheet submitted after the filing date of an application must be labeled in the top margin as either "Replacement Sheet" or "New Sheet" pursuant to 37 CFR 1.121(d). If the changes are not accepted by the examiner, the applicant will be notified and informed of any required corrective action in the next Office action. The objection to the drawings will not be held in abeyance.

6. The drawings are objected to as failing to comply with 37 CFR 1.84(p)(5) because they do not include the following reference sign(s) mentioned in the description: item 4332 (see figure 43). Corrected drawing sheets in compliance with 37 CFR 1.121(d) are required in reply to the Office action to avoid abandonment of the application. Any amended replacement drawing sheet should include all of the figures appearing on the immediate prior version of the sheet, even if only one figure is being amended. Each drawing sheet submitted after the filing date of an application must be labeled in the top margin as either "Replacement Sheet" or "New Sheet" pursuant to 37 CFR 1.121(d). If the changes are not accepted by the examiner, the applicant will be notified and informed of any required corrective action in the next Office action. The objection to the drawings will not be held in abeyance.

Specification

7. The disclosure is objected to because it contains an embedded hyperlink and/or other form of browser-executable code (see page 31 of the specification). Applicant is required to delete the embedded hyperlink and/or other form of browser-executable code; references to websites should be limited to the top-level domain name without any prefix such as http:// or other browser-executable code. See MPEP § 608.01.

8. The abstract of the disclosure is objected to because:

a. Line 5 recites “at least 1mm”. Examiner suggests adding a space between “1” and “mm” to put the abstract in clearer form.

b. Line 5 recites “a 1mm distance”. Examiner suggests adding a space between “1” and “mm” to put the abstract in clearer form.

A corrected abstract of the disclosure is required and **must be presented on a separate sheet**, apart from any other text. See MPEP § 608.01(b).

Claim Objections

9. Claim 15 objected to because of the following informalities:

a. Line 9, 17, 19 and 20 recite “the device”. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 9, 17, 19 and 20 of claim 15 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

b. Line 11-12 recites “at least 1mm”. Examiner suggests replacing “at least 1mm” in line 11-12 of claim 15 with “at least 1 mm” to put the claim in clearer form.

c. Line 12 recites “a 1mm distance”. Examiner suggests replacing “a 1mm distance” in line 12 of claim 15 with “a 1 mm distance” to put the claim in clearer form.

d. Line 12 recites “the vertical difference”. There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing “the vertical difference” with “a vertical difference”.

10. Applicant is advised that should claim 16 be found allowable, claim 17 will be objected to under 37 CFR 1.75 as being a substantial duplicate thereof. When two claims in an application are duplicates or else are so close in content that they both cover the same thing, despite a slight difference in wording, it is proper after allowing one claim to object to the other as being a substantial duplicate of the allowed claim. See MPEP § 608.01(m).

11. Claim 17 objected to because of the following informalities:

a. Line 2 recite “the device”. Claim 17 depends on claim 15. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 2 of claim 17 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

12. Claim 18 objected to because of the following informalities:

a. Line 1 and 3 recite “the device”. Claim 18 depends on claim 15. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 1 and 3 of claim 18 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

13. Claim 19 objected to because of the following informalities:

a. Line 1 recites “the elasticity”. There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing “the elasticity” in line 1 of claim 19 with “an elasticity”.

b. Line 1-2 recites “the entirety”. There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing “the entirety” in line 1-2 of claim 19 with “an entirety”.

c. Line 2 recites “the device”. Claim 19 depends on claim 18 and claim 15. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 2 of claim 19 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

d. Line 2 recites “0.01 to 1.5 MPa”. Examiner suggests replacing “0.01 to 1.5 MPa” in line 2 of claim 19 with “0.01 MPa to 1.5 MPa” to put the claim in clearer form and clearly define the units of 0.01.

14. Claim 20 objected to because of the following informalities:

a. Line 1-2 recites “the curvature of the posterior surface”. There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing “the curvature of the posterior surface” in line 1-2 of claim 20 with “a curvature of the posterior surface”.

15. Claim 21 objected to because of the following informalities:

a. Line 2 recites “the device”. Claim 21 depends on claim 15. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 2 of claim 21 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

16. Claim 22 objected to because of the following informalities:

a. Line 1 recites “the device”. Claim 22 depends on claim 15. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 1 of claim 22 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

b. Line 3 recites “the maximum height”. There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing “the maximum height” in line 3 of claim 22 with “a maximum height”.

c. Line 5 recites “the maximum distance”. There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing “the maximum distance” in line 5 of claim 22 with “a maximum distance”.

17. Claim 23 objected to because of the following informalities:

a. Line 1 and line 3 recite “the device”. Claim 23 depends on claim 15. Line 1-2, 3, and 7 of claim 15 refer to the device as the ophthalmic device. Examiner suggests replacing “the device” in line 1 AND line 3 of claim 23 with “the ophthalmic device” to put the claim in clearer form and clearly refer to the ophthalmic device.

18. Claim 24 objected to because of the following informalities:

a. Line 1 recites "the residence period". There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing "the residence period" in line 1 of claim 24 with "a residence period".

19. Claim 29 objected to because of the following informalities:

a. Line 7-8 recites "the vertical difference". There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing "the vertical difference" in line 7-8 of claim 29 with "a vertical difference".

b. Line 14 recites "the inner surface". There is insufficient antecedent basis for the limitation in this claim. Examiner suggests replacing "the inner surface" in line 14 of claim 29 with "an inner surface".

c. Line 14, 16, and 18 recite "the eyelid". Line 11 recites "an inferior eyelid" and line 21 also recites "the inferior eyelid". Examiner suggests replacing "the eyelid" in line 14, 16, and 18 with "the inferior eyelid" to put the claim in clearer form and clearly refer to the inferior eyelid of line 11.

Claim Rejections - 35 USC § 112

The following is a quotation of 35 U.S.C. 112(b):
(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:
The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

20. Claims 15-29 rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the

inventor or a joint inventor (or for applications subject to pre-AIA 35 U.S.C. 112, the applicant), regards as the invention.

In regard to claim 15,

Line 1-2 recites “an ophthalmic device comprising a body comprising a drug having: a posterior surface”. It is unclear if the ophthalmic device, the body, or the drug, has a posterior surface, an anterior surface and a retention portion. For examination purposes Examiner construes the body to have a posterior surface, an anterior surface and a retention portion. Examiner suggests replacing “an ophthalmic device comprising a body comprising a drug having: a posterior surface” in line 1-2 of claim 15 with “an ophthalmic device comprising a body comprising a drug, the body having: a posterior surface”.

Line 10 recites “an eyelid”. Line 7 also recites “an eyelid”. It is unclear if the eyelid of line 10 is the same or in addition to the eyelid of line 7. For examination purposes Examiner construes them to be the same.

Line 13-14 recites “the central vertical cross sectional plane”. Line 8 recites “an imaginary central vertical cross sectional plane”. It is unclear if the plane of line 13-14 is the same as the plane of line 8 or if the plane of line 13-14 is intended to be not imaginary. For examination purposes Examiner construes the planes to be the same. Examiner suggests replacing “the central vertical cross sectional plane” in line 13-14 of claim 15 with “the imaginary central vertical cross sectional plane”.

Line 17 recites “the patient’s eye”. There is insufficient antecedent basis for the limitation in this claim. For examination purposes Examiner construes “the patient’s eye” to be “an eye of the patient”. Examiner suggests replacing “the patient’s eye” in line 17 of claim 15 with “an eye of the patient”.

Line 17 recites “an inferior eyelid”. Line 10 and line 7 recite “an eyelid”. It is unclear if the inferior eyelid is the same or different than the eyelid of line 7 and line 10. For examination purposes Examiner construes them to be the same. Examiner suggests replacing “an eyelid” in line 7 with “an

inferior eyelid" AND replacing "an eyelid" in line 10 with "the inferior eyelid" AND replacing "an inferior eyelid" in line 17 with "the inferior eyelid". Examiner notes all other instances of "the eyelid" in the claims dependent on claim 15 should be replaced with "the inferior eyelid" if claim 15 is amended as suggested. If intending for the eyelids to be different, Examiner suggests amending the claim to replace an/the eyelid with an/the upper eyelid and amending claims 15-27 accordingly.

Examiner notes claims 16-28 are similarly rejected by virtue of their dependency on claim 15.

In regard to claim 16,

Line 1-2 recites "the eyelid". Claim 16 depends on claim 15. Claim 15 requires "applying the device to a bulbar conjunctiva of the patient's eye beneath an inferior eyelid" and "the device remains beneath the inferior eyelid". It is unclear if the ophthalmic device is retained under the eyelid in claim 16 or the inferior eyelid based on the limitations of claim 15. For examination purposes Examiner construes "the eyelid" in line 1-2 of claim 16 to be "the inferior eyelid". Examiner suggests replacing "the eyelid" in line 1-2 of claim 16 with "the inferior eyelid".

Line 2 recites "the tarsal plate". There is insufficient antecedent basis for the limitation in this claim. For examination purposes Examiner construes "the tarsal plate" to be "a tarsal place". Examiner suggests replacing "the tarsal plate" in line 2 of claim 16 with "a tarsal plate".

In regard to claim 17,

Line 2 recites "the tarsal plate". There is insufficient antecedent basis for the limitation in this claim. For examination purposes Examiner construes "the tarsal plate" to be "a tarsal place". Examiner suggests replacing "the tarsal plate" in line 2 of claim 17 with "a tarsal plate".

Line 2 recites "the eyelid". Claim 17 depends on claim 15. Claim 15 requires "applying the device to a bulbar conjunctiva of the patient's eye beneath an inferior eyelid" and "the device remains beneath the inferior eyelid". It is unclear if the ophthalmic device is retained under the eyelid in claim 17 or the inferior eyelid based on the limitations of claim 15. For examination purposes Examiner construes "the

eyelid" in line 2 of claim 17 to be "the inferior eyelid". Examiner suggests replacing "the eyelid" in line 2 of claim 16 with "the inferior eyelid".

In regard to claim 18,

Line 2 recites "adhering by suction". It is unclear what structures are adhered by suction. It is unclear if the ophthalmic device is adhered to the bulbar conjunctiva by suction or if the posterior surface is adhered by suction to the bulbar conjunctiva. For examination purposes Examiner construes the ophthalmic device to be adhered to the bulbar conjunctiva by suction. Examiner suggests replacing "wherein applying the device to the bulbar conjunctiva comprises adhering by suction provided" in line 1-2 with "wherein applying the ophthalmic device to the bulbar conjunctiva comprises adhering the ophthalmic device to the bulbar conjunctiva by suction provided".

Examiner notes claims 19-20 are similarly rejected by virtue of their dependency on claim 18.

In regard to claim 20,

Line 1-2 recites "wherein the difference in curvature is such that the curvature of the posterior surface is smaller than that of the bulbar conjunctiva". It is unclear if the curvature of the posterior surface is smaller than a curvature of the bulbar conjunctiva or smaller than a different curvature of the bulbar conjunctiva (for example smaller than part of a curvature of the bulbar conjunctiva). Examiner suggests replacing "wherein the difference in curvature is such that the curvature of the posterior surface is smaller than that of the bulbar conjunctiva" in line 1-2 of claim 20 with "wherein the difference in curvature is such that a curvature of the posterior surface is smaller than a curvature of the bulbar conjunctiva".

In regard to claim 26,

Line 1 recites "the residence period". There is insufficient antecedent basis for the limitation in this claim. It is unclear if the residence period is a residence period of the ophthalmic device on the eye or if the residence period refers to a different period. For examination purposes Examiner construes

"the residence period" to be "a residence period of the ophthalmic device on the eye". Examiner suggests replacing "the residence period" in line 1 of claim 26 with "a residence period of the ophthalmic device on the eye".

Line 2 recites "by manual removal from beneath the eyelid". Claim 26 depends on claim 15. Claim 15 requires "applying the device to a bulbar conjunctiva of the patient's eye beneath an inferior eyelid" and "the device remains beneath the inferior eyelid". It is unclear if the ophthalmic device is removed from beneath the eyelid in claim 26 or the inferior eyelid based on the limitations of claim 15. For examination purposes Examiner construes "the eyelid" in line 2 of claim 26 to be "the inferior eyelid". Examiner suggests replacing "the eyelid" in line 2 of claim 26 with "the inferior eyelid".

In regard to claim 27,

Line 1 recites "at least one drug". Claim 25 depends on clam 15. Line 2 of claim 15 requires the body to comprise a drug. It is unclear if the at least one drug includes the drug of claim 15 or if the at least one drug is in addition to the drug of claim 15 i.e. a drug and then an additional at least one drug is included. For examination purposes Examiner construes the at least one drug to include the drug of claim 15. Examiner suggests replacing "at least one drug" in line 1 of claim 27 with "at least one drug including the drug".

Examiner notes claim 28 is similarly rejected by virtue of its dependency on claim 27.

In regard to claim 28,

Line 1 recites "the drug". Claim 28 depends on claim 15 and clam 27. Claim 27 recites at least one drug and claim 15 recites a drug. It is unclear which drug the drug of claim 28 refers to. For examination purposes Examiner construes "the drug" to be "the at least one drug". Examiner suggests replacing "the drug" in line 1 of claim 28 with "the at least one drug".

In regard to claim 29,

Line 2 recites “the device comprising a body containing a drug and having a posterior surface, an anterior surface”. It is unclear if the ophthalmic device, the body, or the drug, has a posterior surface, and an anterior surface. For examination purposes Examiner construes the body to have a posterior surface, and an anterior surface. Examiner suggests replacing “the device comprising a body containing a drug and having a posterior surface, an anterior surface” in line 2 of claim 29 with “the device comprising a body containing a drug, the body having a posterior surface, an anterior surface”.

Line 8-9 recites “the vertical cross-sectional plane”. Line 4 recites “an imaginary central vertical cross-sectional plane”. It is unclear if the plane of line 8-9 is the same as the plane of line 4 or if the plane of line 8-9 is intended to be not imaginary or central. For examination purposes Examiner construes the planes to be the same. Examiner suggests replacing “the vertical cross-sectional plane” in line 8-9 of claim 29 with “the imaginary central vertical cross-sectional plane”.

Line 11 recites “the patient’s eye”. There is insufficient antecedent basis for the limitation in this claim. For examination purposes Examiner construes “the patient’s eye” to be “an eye of the patient”. Examiner suggests replacing “the patient’s eye” in line 11 of claim 29 with “an eye of the patient”.

Line 13 recites “the eye surface”. There is insufficient antecedent basis for the limitation in this claim. For examination purposes Examiner construes “the eye surface” to be “a surface of the eye”. Examiner suggest replacing “the eye surface” in line 13 of claim 19 with “a surface of the eye”. **Examiner notes line 15, 18-19, and line 20 of claim 29 should also be amended to replace “the eye surface” with “the surface of the eye”.**

Allowable Subject Matter

21. Claims 15-29 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), 2nd paragraph, set forth in this Office action.

22. The following is a statement of reasons for the indication of allowable subject matter:

In regard to claim 15,

The prior art of record does not teach or otherwise render obvious before the effective filing date of the claimed invention in combination with all claim limitations a method of treating a patient suffering from an ophthalmic condition using an ophthalmic device comprising a body comprising a drug and having: the retention portion being bordered by a portion of the anterior surface and having a height difference of at least 1mm over at most a 1mm distance, the height difference being the vertical difference between a first height and a parallel second height that are each coplanar with the central vertical cross sectional plane and that are each measured from the horizontal plane vertically to the anterior surface, the distance being measured horizontally from the first height to the second height in combination with the specific claimed method steps of claim 15.

Bawa (U.S. Patent no 5137728) a method of treating a patient suffering from an ophthalmic condition (column 1, line 45-58) using an ophthalmic device (see device of figure 2) comprising a body (see figure 2) comprising a drug (column 7, line 20-45 and column 8, line 3-column 8, line 30) and having: a posterior surface which is configured to face an eye surface when the ophthalmic device is worn (see figure 2; column 9, line 60-column 10, line 10); an anterior surface defining a height of the body above the eye surface (see figure 2), the posterior surface and the anterior surface joining at an edge (see figure 2), the edge comprising a leading edge that is configured to be a portion of the edge nearest an opening of an eyelid when the ophthalmic device is worn (see figure 2; column 9, line 60-column 10, line 10), the body defining an imaginary central vertical cross sectional plane that intersects the leading edge and is perpendicular to a horizontal plane on which the device in a relaxed state rests (see figure 2); and a retention portion (see figure 2 wherein the body of the device between the posterior surface and the anterior surface form the retention portion) configured to reside between an eyelid and the eye surface (column 9, line 60-column 10, line 10), the retention portion being bordered by a portion of the anterior surface (see figure 2), the method comprising a. applying the device to a bulbar conjunctiva of the patient's eye beneath an inferior eyelid (column 9, line 60-column 10, line 10);

and b. allowing the device to release a therapeutic amount of the drug to the eye surface while the device remains beneath the inferior eyelid (column 1, line 53-58, column 7, line 20-45 and column 8, line 3-column 8, line 30). Bawa fails to disclose the retention portion being bordered by a portion of the anterior surface having a height difference of at least 1mm over at most a 1mm distance, the height difference being the vertical difference between a first height and a parallel second height that are each coplanar with the central vertical cross sectional plane and that are each measured from the horizontal plane vertically to the anterior surface, the distance being measured horizontally from the first height to the second height.

Hussain (U.S. Patent no 3960150) a method of treating a patient suffering from an ophthalmic condition (column 2, line 53-54) using an ophthalmic device (column 2, line 55-57; see figure 5) comprising a body (see figure 5) comprising a drug (column 11, line 15-43) and having: a posterior surface (see figure 5) which is configured to face an eye surface when the ophthalmic device is worn (see figure 5); an anterior surface (see figure 5) defining a height of the body above the eye surface (see figure 5), the posterior surface and the anterior surface joining at an edge (see figure 5), the edge comprising a leading edge that is configured to be a portion of the edge nearest an opening of an eyelid when the ophthalmic device is worn (see figure 5), the body defining an imaginary central vertical cross sectional plane that intersects the leading edge and is perpendicular to a horizontal plane on which the device in a relaxed state rests (see figure 5); and a retention portion (see figure 5 wherein the body of the device between the posterior surface and the anterior surface form the retention portion) configured to reside between an eyelid and the eye surface (see figure 2), the retention portion being bordered by a portion of the anterior surface (see figure 5); the method comprising: a. applying the device to a bulbar conjunctiva of the patient's eye beneath an inferior eyelid (see figure 2); and b. allowing the device to release a therapeutic amount of the drug to the eye surface while the device remains beneath the inferior eyelid (column 11, line 15-43). Hussain fails to disclose the retention

portion being bordered by a portion of the anterior surface having a height difference of at least 1mm over at most a 1mm distance, the height difference being the vertical difference between a first height and a parallel second height that are each coplanar with the central vertical cross sectional plane and that are each measured from the horizontal plane vertically to the anterior surface, the distance being measured horizontally from the first height to the second height.

Badawi (U.S. PG publication 20130172829) a method of treating a patient suffering from an ophthalmic condition (paragraph [0002]) using an ophthalmic device (see figure 3A, item 12) comprising a body (see figure 3A) comprising a drug (paragraph [0018] and [0098]-[0101]) and having: a posterior surface which is configured to face an eye surface when the ophthalmic device is worn (see figure 3A and 2B); an anterior surface (see figure 3A) defining a height of the body above the eye surface (see figure 3A), the posterior surface and the anterior surface joining at an edge (see figure 3A), the edge comprising a leading edge that is configured to be a portion of the edge nearest an opening of an eyelid when the ophthalmic device is worn (see figure 3A and 2), the body defining an imaginary central vertical cross sectional plane that intersects the leading edge and is perpendicular to a horizontal plane on which the device in a relaxed state rests (See figure 3A); and a retention portion (see figure 3A wherein the body of the device between the posterior surface and the anterior surface form the retention portion) configured to reside between an eyelid and the eye surface (see figure 2 and 3A), the retention portion being bordered by a portion of the anterior surface (see figure 3A); the method comprising: a. applying the device to a bulbar conjunctiva of the patient's eye beneath an inferior eyelid (see figure 2); and b. allowing the device to release a therapeutic amount of the drug to the eye surface while the device remains beneath the inferior eyelid (paragraph [0018] and [0098]-[0101]). Badawi fails to disclose the retention portion being bordered by a portion of the anterior surface having a height difference of at least 1mm over at most a 1mm distance, the height difference being the vertical difference between a first height and a parallel second height that are each coplanar with the central

vertical cross sectional plane and that are each measured from the horizontal plane vertically to the anterior surface, the distance being measured horizontally from the first height to the second height.

Chow (U.S. PG publication 20070154522) a method of using an ophthalmic device (see figure 1) comprising a body (see figure 1) comprising a drug (paragraph [0040]-[0041]) and having: a posterior surface (see figure 1) which is configured to face an eye surface when the ophthalmic device is worn (see figure 1); an anterior surface (see figure 1) defining a height of the body above the eye surface (see figure 1), the posterior surface and the anterior surface joining at an edge (see figure 1), the edge comprising a leading edge that is configured to be a portion of the edge nearest an opening of an eyelid when the ophthalmic device is worn (see figure 1), the body defining an imaginary central vertical cross sectional plane that intersects the leading edge and is perpendicular to a horizontal plane on which the device in a relaxed state rests (see figure 1); and a retention portion (see figure 1 wherein the body of the device between the posterior surface and the anterior surface form the retention portion) configured to reside between an eyelid and the eye surface (see figure 1), the retention portion being bordered by a portion of the anterior surface (see figure 1); the method comprising: b. allowing the device to release a therapeutic amount of the drug to the eye surface (paragraph [0005] and [0040]-[0041]). Chow fails to disclose the retention portion being bordered by a portion of the anterior surface having a height difference of at least 1mm over at most a 1mm distance, the height difference being the vertical difference between a first height and a parallel second height that are each coplanar with the central vertical cross sectional plane and that are each measured from the horizontal plane vertically to the anterior surface, the distance being measured horizontally from the first height to the second height.

As disclosed in the instant application the specific claimed dimensions of the device provide an increased surface for interaction with the eyelid/s e.g. for retention of the device within the eyelid and/or when removing the device using pinch removal (see page 44, line 22-27 of the instant disclosure)

and prevent rotation (see page 44, line 28-page 45, line 3 of the instant disclosure). Accordingly, claim 15 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), 2nd paragraph, set forth in this Office action.

In regard to claim 29,

The prior art of record does not teach or otherwise render obvious before the effective filing date of the claimed invention in combination with all claim limitations a method of treating a patient suffering from an ophthalmic condition using an ophthalmic device, the device comprising the body further comprising a retention portion defined between the posterior and anterior surfaces, exhibiting a height difference of at least 1 mm over at most a 1 mm horizontal distance, the height difference being the vertical difference between first and second points on the anterior surface that are each coplanar with the vertical cross-sectional plane and measured vertically from the horizontal plane. Claim 29 requires similar limitations as claim 15 and therefore would be allowable for similar reasons as claim 15 above if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), 2nd paragraph, set forth in this Office action.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to ALEXANDRA ELIZABETH LALONDE whose telephone number is (313)446-6594. The examiner can normally be reached M-F 8-5 EST.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Kevin Sirmons can be reached at (571) 272-4965. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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/ALEXANDRA LALONDE/
Examiner, Art Unit 3783
/KEVIN C SIRMONS/
Supervisory Patent Examiner, Art Unit 3783